



RIBA PART 3
EXAMINATION IN PROFESSIONAL PRACTICE

Autumn 2018 Practice Problems

Day 1

Questions 1-5

GUIDANCE NOTES

In order to be registered as an architect under the Architects Act 1996 and to be eligible for chartered membership of the Royal Institute of British Architects, candidates have to be able to demonstrate their ability to deal competently with situations that arise in the ordinary course of general architectural practice. The practice problems of the RIBA Part 3 Examination in Professional Practice are devised in order to provide candidates with the opportunity to demonstrate their professional competence, working in realistic conditions over two days in their office.

Candidates are to imagine themselves as an employee of the architectural practice described in the scenario, taking the role of the Candidate, responding to each of the problems set out for each of the two days, using the information given in the scenario and in the particular problems. All of the questions carry equal weight and each of them must be attempted. The questions are issued at 9.00am to the candidates by the nominated Examination Supervisor each day.

Some of the questions may well require more investigation than others and the responses to the problems may well vary in length and complexity depending on the nature and circumstances involved. It is suggested that the Candidate first read through all of the questions before allocating an appropriate amount of time to each of the problems and allowing sufficient time to read through their responses before emailing them to their Examination Supervisor at 5.30pm of each day. The candidate should also upload a copy to the BOX.com links (provided via email on 29th August) on each of the respective days.

Normally the total amount of material submitted in response to the problems is not expected to exceed 5,000 words. Where reference is made to published material the source and the page number must be cited; the copying of published material is not required and should not be necessary, information gained from websites must also be cited. Clear succinct responses are preferred to over long verbose discursive answers. Candidates are advised to ensure that their answers are in the form requested, for example where a question asks for a letter it is essential that the response is in the form of a conventional business letter.

Responses to the problems must be typed in A4 size format.

The information given in the scenario and in each of the questions is designed to be helpful and relevant; it is strongly recommended that it should be read carefully before making responses to the problems. Any assumptions made in the course of responding to a problem must be indicated and candidates must be prepared to discuss them during the professional interview.

Candidates may use any reference material, standard documents, the office library and the normal office aids including computers, photo-copiers, stationery, standard documents within the office, subject to the agreement of your employer. The practice problems and the responses to them must not be discussed with others until after their submission which must include a declaration notice signed by the candidate and the candidate's examination supervisor certifying that it is the candidate's own unaided work.

Where there is more than one candidate taking the examination within the same office, reference material may be shared but candidates may not discuss the problems or their responses to them until after their submission.

At the end of each of the two days at 5.30pm (or no later than 7.30pm if the candidate has been granted an additional 2 hours), candidates are required to email their Examination Supervisor with copies of their draft responses which should be retained by the exam supervisor. Candidates are also required to upload a copy to the unique BOX.com links (provided via email on 29th August) on each of the respective days.

5.30pm Wednesday 5th September – Day One Practice Problem responses

5.30pm Thursday 6th September – Day Two Practice Problem responses

NB – responses for each exam day should be saved in PDF format. The filename should read as the following: 'Practice Problem Responses Day One – Candidate Name' & 'Practice Problem Responses Day Two – Candidate Name'.

e.g. 'Practice Problem Responses Day One – Joe Bloggs'

The uploaded responses are devised as a means of protecting the integrity of the examination; they will be used by the examiners in comparing them with the final versions in the documentary submission. Any deviation between the draft and final answers other than the allowed proof reading and typographical correction, formatting and presentation can result in the Practice Problems being failed for not complying with the regulations.

The third day is solely for the copy typing, proof reading and typographical correction, collation and spiral binding of two copies of the documentary submission which have to be dispatched together with the Examination Supervisors Declaration certifying that the whole submission is the candidates own unaided work.

The cover of the documentary submission must show the candidate's full name, the title of the practice in which the responses to the problems were written and the name of the Examination Supervisor. Candidates are advised to prepare a copy of their submission for reference in preparation of the professional interview and if need be in the course of the interview.

The parcel containing these documents must be securely packed and carefully addressed to Alison Mackinder, Professional Education Programmes Director, RIBA Part 3, RIBA North, 21 Mann Island, Liverpool Waterfront, **L3 1BP, United Kingdom.**

Parcels must be dispatched by 5.30pm on the third day using the Post Office Guaranteed Delivery System or its equivalent and a timed receipt obtained for submission to the examiners at the professional interview.

You also need to upload your submission prior to 5.30pm to the unique BOX.com link (provided via email on 29th August).

Final Submission: 5.30pm on Friday 7th September 2018

SCENARIO

The name NDG Architects Ltd is listed in the current RIBA Directory of UK Chartered Practices.

Established in 1998, the practice has a wide range of design and development experience across a number of private-sector and public-sector areas, including commercial, retail, industrial, education and health care.

Exclusively based in the North West of England, the practice office is located in a converted mill building in Central Madchester. As confidence in the workload grows the practice is looking at opportunities to expand.

As a candidate for the Autumn 2018 examination you are required to assume that you are a salaried employee of NDG Architects and have been engaged at this practice for a period of 20 months whilst preparing to sit the Part 3 examination.

Companies House records show that NDG Architects Ltd has two directors and one associate director.

James Noble has suffered health problems and now works part-time as a consultant. He is an important link to some longstanding clients.

Belinda Carter is an architect and the Managing Director. Her role in marketing the practice continues with significant success this year, as a result she is leading a review to determine the potential for the practice to restructure and expand. As part of this review she is eager to consider the views of all members of staff.

Michael Hart is a conservation architect and Director. With the retirement of James Noble, Michael has become a director of the practice. He is a RIBA specialist conservation architect and listed on the Diocese schedule of approved architects. His reputation in this field has previously resulted in the practice being commissioned to carry out larger conservation projects attracting lottery funding.

Michael is also listed as a Client Design Advisor on the RIBA's CDA register.

Sue Allen is an architect and Associate Director. She is an accredited sustainability expert and has completed a MSc course in Advanced Sustainability at the University of Madchester. Sue also acts as the company's quality manager, responsible for the ongoing development and maintenance of the quality assurance system and manual.

Significant projects currently or recently handled by the practice include:

Madchester College of Art

The practice was appointed in Spring 2016 to design a new building for Madchester College of Art to provide additional teaching, lecture theatre, studios and supporting spaces to supplement the existing accommodation in response to the development of an increased and varied range of courses and the consequential rise in student intake.

The existing Edwardian building was refurbished ten years ago, and the college has gone from strength to strength in attracting both UK and International students for courses in fine art and graphic design.

The new six-storey building incorporates a basement and five upper storeys and provides state-of-the-art facilities and services including a new 120-seat flexible lecture theatre and exhibition space with a five-storey central atrium forming the principal focal point and circulation space. The new building is independent of the existing building and an open landscaped courtyard with covered access will link the two buildings.

The new building has been procured using a traditional procurement route as the client wished to maintain careful control on quality, time and programme. The twelve-month SBC16 with Quantities contract has recently been fraught with issues. There is concern that the failure to deliver the £16m building on time will cause major accommodation difficulties for the college in the delivery of courses from mid-September 2018.

Spoke Retail Park, New Supermarket

The practice has designed a number of successful new buildings within the Spoke Retail Park over the last few years and continues to be appointed on the adjacent sites as the retail park expands.

A local developer has been buying redundant industrial land in the area, obtaining planning approvals for new buildings and selling the sites to high profile national retailers. This developer has become well known locally and has also recently started work on a £100M prestigious development in the city centre.

NDG has been appointed as lead consultant and contract administrator for a new 5,300 sq m unit which has been on site for 25 weeks of a 40 week contract and everything is progressing nicely.

60% of the construction work has been funded by two overseas banks.

The developer likes their architect to lead their projects so a JCT Standard Building Contract with Quantities 2016 is being used for the construction of the envelope and external works.

Conversion and Upper Storey Extension to former Office Building, Madchester

The practice was appointed 18 months ago by Iffy Developments to obtain planning permission for the conversion and refurbishment of a Grade II listed former office building into 34 apartments, and recently received planning permission for a new build upper-storey extension providing eight additional apartments.

The client has commenced works on the existing building. The client is both the developer and the contractor. The practice has not been appointed beyond the planning stage. The approximate value of scheme is £8,200,000.

Development of 24 apartments at Dry Wells for Lycragran Developments

The practice has been recommended to a developer by a firm of structural engineers, Sky, Hook and Partners, with whom they have a long standing relationship. Following an initial meeting which seemed to go really well, Lycragran Developments has confirmed that the practice will be appointed to design the new apartments and take the project to end RIBA Work Stage 3.

Residential Development at 1 Wayward Place, Ormkirk near Madchester

The practice has been approached by a young married couple who have recently been bequeathed an Edwardian end-of-terrace property in the historic town of Ormkirk which lies about twelve miles outside Madchester. NDG were recommended by owners of the Victorian detached dwelling in Pod Park that the practice restored recently. Being young and very inexperienced, they are seeking help with the refurbishment and extension of the property that they intend to move into as early as possible. The house is not listed but is set within Ormkirk Conservation Area and is located on a prominent corner site.

The project brief includes a side extension at ground level increase living space in tandem with the complete refurbishment of the property to provide twenty first century accommodation, services and facilities. The project has recently been successfully tendered and the construction work is moving at pace on site.

Madchester Towers

The practice has undertaken work for many years for IR Developments, the most recent project being a £7m luxury apartment building in the heart of Madchester. News has spread that the developer has recently acquired a prominent city centre site which is to be developed as speculative offices providing incubation resources identified as much-needed accommodation in the commercial heartland of Madchester. If the rumours are correct, the practice thinks it will get a chance to bid for the work which is outside the normal residential portfolio.

Competition is likely to be stiff but it would be a great opportunity especially if IR Developments intend to do more work in the commercial sector.

Staff and salaries/director remuneration

NDG Architects

Charge-out Hourly Rates

Name	Role/Status	Salary	Charge-out Rate
James T Noble	Consultant		£90/hr
Belinda C Carter	Director	£ 56,000.00	£80/hr
Michael Hart	Director	£ 56,000.00	£80/hr
Sue Allen	Associate Director	£ 45,000.00	£70/hr
Dareem Patel	Senior Architect	£ 38,000.00	£57/hr
Sven Berg	Senior Architect	£ 38,000.00	£57/hr
Tomas Hjeltnes	Architect	£ 33,000.00	£50/hr
Renata Wang	Architect	£ 33,000.00	£50/hr
George Gee	Architectural Technologist	£ 29,000.00	£43/hr
Candidate	Architectural Assistant	£ 26,500.00	£40/hr
Olga Poulicek	Architectural Assistant	£ 26,500.00	£40/hr
Mark Jones	Architectural Technician	£ 24,000.00	£36/hr
Liv Grosfjelt	Year-out Student	£ 20,000.00	£28/hr
Sara Smitt	Year-out Student	£ 20,000.00	£28/hr
Sarah Jane Key	Administrative Assistant		
Sophie Bright	Receptionist/Clerical Assistant		
Jane Dudley	Clerical Assistant		
Anne Holding	Accounts Assistant		

NB: All the characters, locations and projects of the scenario and the practice problems are entirely fictitious and any similarity or resemblance to persons, places, projects or practices is totally coincidental.

NB: The dates of the emails to the candidate which outline the questions will not necessarily be sequential - for instance where the same project forms the basis of two separate questions which are set at different points/work stages.

End

QUESTION 1

Page 1 of 4

Email@ndgarchitects.com

Date: 02 August 2018

To: Candidate@ndgarchitects.com

From: Belinda Carter

Re: Alterations to 1 Wayward Place, Ormkirk

I have received your email and attachment.

I have spoken with Michael in the office.

We will have to sort out the planning issues but at this point in time I am more concerned about the professional matters raised by these events.

Looking back over the project since you got involved what do you think should have been done and what lessons could we all learn?

Can you send me an email with your thoughts please before our meeting tomorrow? Don't worry or bother discussing the means of resolving the planning issues which we can look at when we meet.

Thanks and regards

Belinda Carter, Director

NDG Architects

QUESTION 1

Page 2 of 4

Email@ndgarchitects.com

Date: 01 August 2018

To: Belinda Carter

From: Candidate@ndgarchitects.com

Re: Alterations to 1 Wayward Place, Ormkirk

Good morning Belinda,

I attach an email from Ava Grudge at Ormkirk Civic Society regarding a stainless steel flue on the new extension at 1 Wayward Place. For your information, I would confirm the events as they have quickly unfolded:

- The project at 1 Wayward Place was being managed by senior architect Sven Berg, who had to leave the office very suddenly due to personal reasons and, needless to say, this caused some concern as to how the project would move forward.
- Michael suggested that I took the project over, following my involvement with a similar residential project in Pod Park that I helped with up to RIBA Work Stage 3.
- Sven had completed the technical drawings and specification and following the successful competitive tender process, the construction work started on site and has been progressing at pace. It is only ten weeks since the contractor started the work and the envelope of the extension is already complete.
- Michael thought the project would give me good Part 3 experience as I have never worked on a traditional contract beyond Stage 3 before. He has never managed to brief me fully because of other commitments but thought that 'throwing me in at the deep end' would be of benefit. I was introduced to the client as the new 'Part 3 Architect' as, being the first time they have carried out an architectural project, they were insistent that the project was looked after by an architect. We seem to be getting on well.
- I received a 'WhatsApp' message from the client on Monday last week with a picture of a wood burning stove that they bought on impulse at the weekend. The couple asked me to arrange installation of the stove within the side extension. I immediately visited site and agreed the location with the contractor.
- The contractor purchased and installed a 200mm diameter stainless steel flue on Friday last week in strict accordance with the manufacturer's instructions. The flue projects approximately 4 metres above the roof of the new side extension.

QUESTION 1

Page 3 of 4

Email@ndgarchitects.com

- I received a call today from one of the neighbours who happens to be the secretary of the local Civic Society saying that planning permission was not obtained for the flue which visible from the street and asked for it to be removed.
- The call was quickly followed up with an email which is attached.

I am obviously concerned and would be grateful for your advice.

Thanks and best regards

Candidate

NDG Architects

QUESTION 1

Page 4 of 4

Email@OrmkirkCivicSociety.com

Date: 01 August 2018

To: Candidate@ndgarchitects.com

From: Ava Grudge

Re: Flue at 1 Wayward Place, Ormkirk

Further to our telephone conversation earlier today, I note with some concern, that a tall stainless steel flue has been erected on a new extension which is under construction at 1 Wayward Place in the Ormkirk Conservation Area. The flue is clearly visible from the main road and really detracts from the quality and detail of the property.

I have checked the drawings approved by the Planning Department via the Local Authority's website and the flue is not shown.

The Ormkirk Conservation Area is very special. Can you please arrange for the flue to be removed without delay!

Thank You

Ava Grudge

Secretary

Ormkirk Civic Society

QUESTION 2

Page 1 of 2

Email@ndgarchitects.com

Date: 06 August 2018

To: Candidate@ndgarchitects.com

From: Belinda Carter

Re: New Apartments in Madchester for Lycragran Developments Limited

Good morning! I have just received the attached email from Lycragran Developments following the successful meeting last Friday about the new apartment development in Madchester.

As discussed, I think this would be an ideal project on which you can take the lead. It might even make a good case study albeit I am not sure, at this stage, to what extent we will be involved beyond RIBA Work Stage 3 as there is still indecision about the procurement route.

Could you please draft a response to the email from the developer for me to look at when I get back into the office late afternoon which will greatly help and save me time?

I am eager to get a reply out by the end of today and keep the momentum going.

Thanks and regards

Belinda Carter, Director

NDG Architects

QUESTION 2

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Email@lycragran.com

Date: 06 August 2018

To: Belinda@ndgarchitects.com

From: Damon Hillock

Re: New Apartments in Madchester for Lycragran Developments Limited

Hi Belinda,

Thank you coming into the office on Friday 03 August 2018 and discussing the above project. We are really looking forward to working with you and the practice on our proposed prestigious apartment development (and hopefully future projects). Sky Hook and Partners speak very highly of you.

As agreed you will provide a full service up to RIBA Work Stage 3 to secure the planning consent for a fee of 1.25% of the anticipated construction budget of £6.5m.

Our bespoke form of agreement will be forwarded to you in due course but please bear with us as Sandra, our office manager has recently been told that she needs a fairly major operation and will be away from the office for quite a few weeks if not months! We will of course be making other arrangements but as we both know Sky Hook and Partners and can therefore hopefully trust one another, the agreement probably won't be high on the list of priorities. Please take this email as our instruction to proceed.

We would like to meet again, possibly next week to discuss the programme but if you can give us a brief outline of the timescales in the meantime that would be helpful. Like all developers we want to get on with the project as quickly as possible but equally need to be realistic so that we can schedule our workload accordingly.

Best regards

Damon

Damon Hillock

Managing Director

Lycragran Developments Limited

QUESTION 3

Page 1 of 3

NDG Architects **INTEROFFICE MEMO**

Date 13 August 2018

To: Candidate

From: James Noble

Re: Proposed residential refurbishment/conversion of former office building and upper storey extension.

As you know, after a very heated Planning Committee meeting last month and despite many objections including several from local heritage groups, planning permission and listed building consent was finally obtained for this sensitive site. I have just received an email from the client (see attached document) who is still not happy and wants to go for a further additional floor. We have had detailed pre-application discussions with the local planning authority in which the option of two additional floors was discussed. Iffy Developments subsequently instructed us to reduce the extension to just one additional floor which was submitted and has now been formally approved.

As I recall you recently attended some lectures on your Part 3 Course, in regard to planning and listed buildings and I think this is a good opportunity for you to carefully put together a detailed response to his email regarding the potential planning issues. Please include your analysis and a recommendation as to the best way forward. There are some important questions to consider:

- Do we go for a pre-application submission again?
- What happens if planning approval is refused?
- Do we need any additional specialist consultants?
- What are the potential risks in terms of cost, programme and detailed design bearing in mind Iffy Developments has already begun the previously approved internal refurbishment works on site?
- What about the planning conditions on the approved scheme?

Another area of concern is Fred Iffy's statement in regard to windows. The client/developer has not received approval for this change. Please highlight the consequences of his actions and advise on the potential next steps to overcome the issue.

Thanks and regards

James Noble, Consultant

NDG Architects

QUESTION 3

Page 2 of 3

Email@iffydevelopments.com

Date: 12 August 2018

To: James Noble <James@ndgarchitects.com>

From: Fred Iffy

Re: Proposed residential refurbishment/conversion of former office building and upper storey extension.

James

I know we have recently received planning permission and listed building consent for the additional storey on the Grade II former office building but having thought a bit more about the matter, I am not entirely happy as I don't think we are exploiting the site's full potential!

Neighbouring properties have been developed higher so I want an additional floor on top as per my sketch attached. I have spoken to the engineers to allow for the additional floor in their design of the steelwork.

I want you to put the application in straight away, How long do you think it will take?

In regard to the on-site works for the approved internal refurbishment of the original building, the partitions are up, first fix is nearing completion and the installation of the uPVC windows is starting next week. We have omitted the timber windows as the uPVC was half the price!

If you can get back to me as soon as possible as I want to start works on the new upper storeys in the next month.

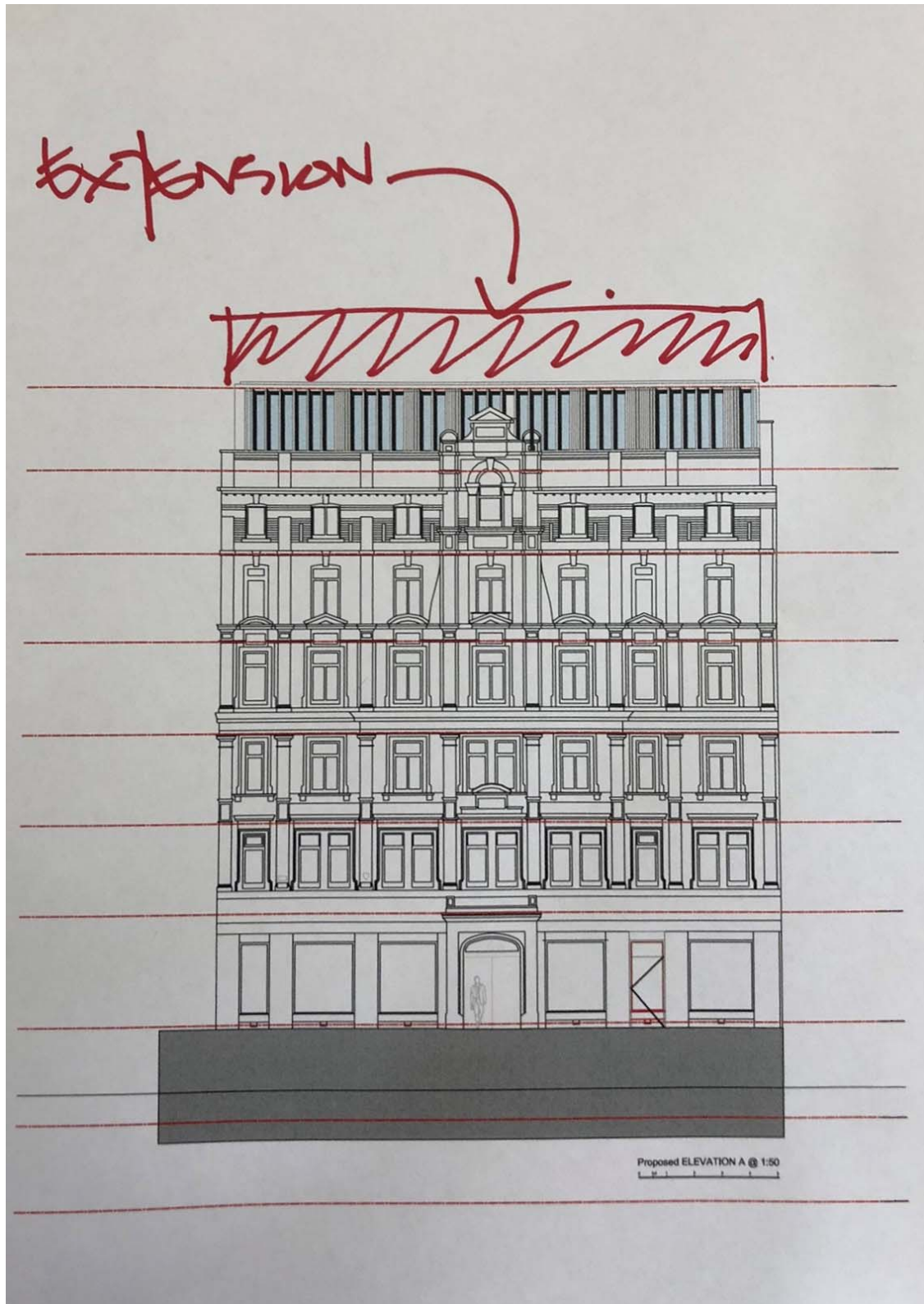
Best wishes,

Fred

**Fred Iffy
Director
Iffy Developments Ltd**

IFFY Developments is a limited company, registered in England and Wales, Partnership number OC6666668. Registered Office, 666 Hades Street, Hell NG1 1H. This message is confidential and may contain legally privileged information. If you have received this in error, please delete this message and let us know by emailing Postmaster@iffy.co.uk telephoning us on +44 (0)15 936 99.

QUESTION 3
Page 3 of 3



QUESTION 4

Page 1 of 2

Email@ndgarchitects.com

Date: 17 August 2018

To: Candidate@ndgarchitects.com

From: Belinda Carter

Re: **Madchester Towers**

We have been contacted by our old repeat developer client Jeff Tracy of IR Developments who wants to know our fee 'at cost' for developing a prominent city-centre site with a six-storey speculative office building in Madchester and is assuming a total budget of around £7m. I have attached a copy of the site plan for information.

At this stage, he just needs to know our lump sum fee for preparing the design proposals and then submitting a full planning application. He says that if we are successful in gaining approval, he will definitely give us the job on the basis of our '*normal*' 5.5% fee using traditional form of procurement. From our knowledge of Madchester and that particular site, we would not expect any major problems from a Local Planning Authority perspective.

I would be grateful if you could do three things:

1. Work out a lump sum fee based upon how long you think it will take relevant members of staff to undertake the commission based on our standard charge our rates, but **LESS 30 %**.
2. Write a confidential memo to me considering the pros and cons of doing this work 'at cost' and what the possible pitfalls might be. Also, please put a list of items together to cover our key terms and conditions, together with any caveats or exclusions, which I can use as an aide memoire when putting an appointment letter together.
3. Produce a simple Gantt chart showing the programme and any key flag points shown against the RIBA work stages 1, 2 and 3.

This could be a great opportunity for the practice and a chance to open a commercial portfolio with IR Developments whose projects have currently been focused on residential developments.

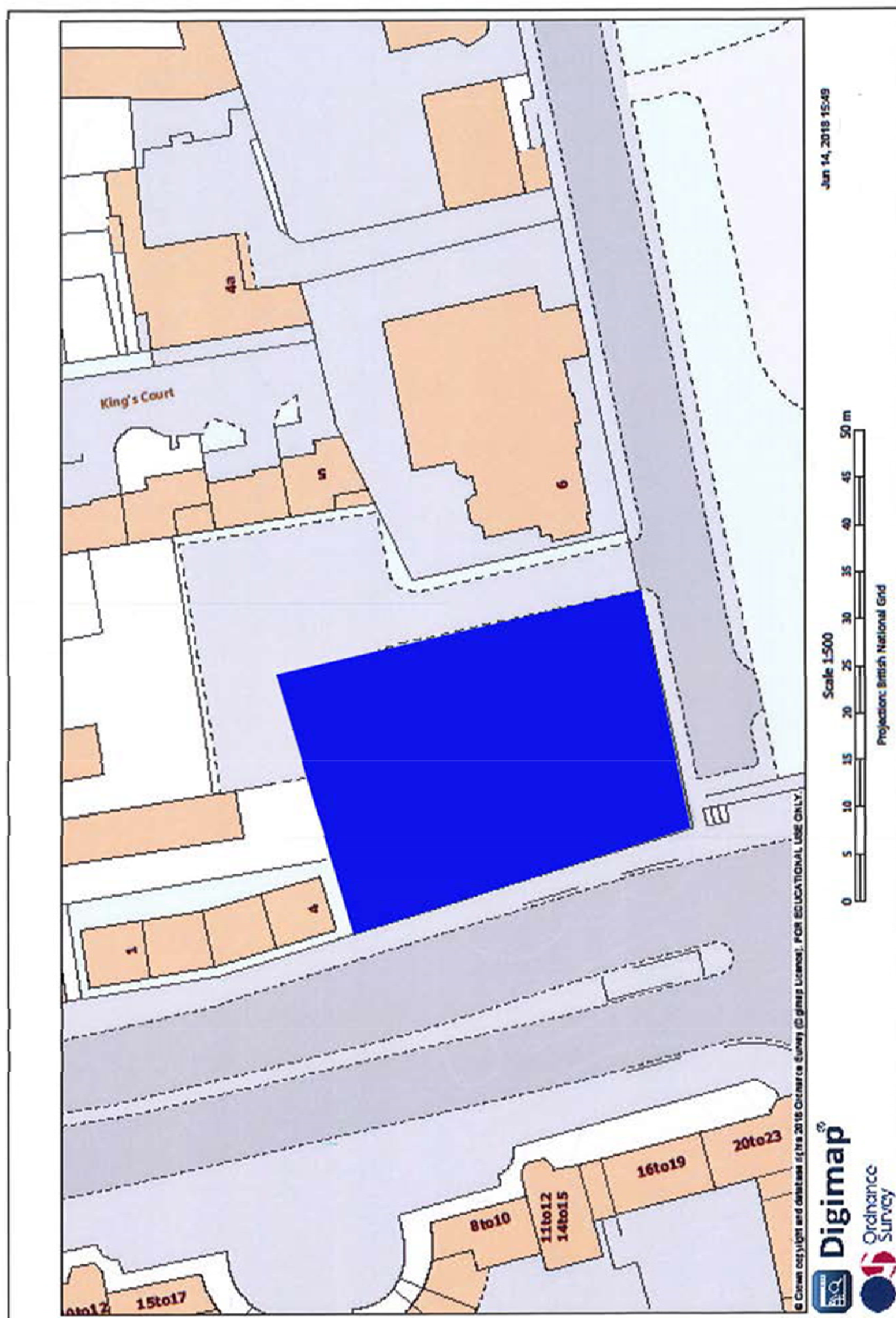
Thanks and best regards

Belinda Carter, Director

NDG Architects

QUESTION 4

Page 2 of 2



QUESTION 5

Page 1 of 2

NDG Architects
INTEROFFICE MEMO

Date 17 August 2018

To: Candidate@ndgarchitects.com

From: Sue Allen

Re: Spoke Retail Park

Good afternoon,

Construction work is progressing well on site with the new retail unit but we have today received a copy of letter which the client has sent to the contractor.

As contract administrators we may have to take some quick action but I am not sure if there is a problem and what action we should take.

I wonder if you could firstly send me a memo with your initial thoughts on the situation and secondly could you please draft a letter to the client informing them of the contractual position.

Thanks and regards

Sue Allen, Associate Director
NDG Architects

QUESTION 5

Page 2 of 2

NDG Architects **INTEROFFICE MEMO**

Spoke Retail Park: Extract of letter from Client to Contractor dated 17 August 2018

The project is progressing very well, and I would like to congratulate you on the excellent service which you have provided to our company. We have done many prestigious developments over the years, with many different contractors and I felt I should let you know that your company is the best we have ever worked with. The site management, quality of work and attitude of your staff are excellent, and you are a credit to the construction industry.

We have a very exciting future ahead of us with lots of great developments to deliver and I would like you to be our main construction partner

With reference to our current project, we have decided to restructure our company and funding arrangements, but this should not have any effect on the smooth running of the job on site. You may also have heard rumours in the press that we are experiencing some financial problems with our major project in the city centre, but I can assure you that this will soon be resolved.

I have been advised by my financial experts that the best way of dealing with the city centre project is to put the company into administration which I will do in a few days. This is the same company which is contracted to you but there is nothing for you to worry about. I have already made plans to set up a new company to complete the project and will transfer all the old companies' funds into the new company to pay for the completion of the works. I have instructed the quantity surveyor to cancel this month's valuation as I will need a couple of months to get everything properly organised and wish to reassure you that there is nothing for you to be concerned about.

I trust that you will continue with your good work on site and please do not hesitate to call me if there is anything you need to discuss.

Yours faithfully

Will Dohisbest
Director
Lycragran Developments Limited

END OF DAY ONE

**Please ensure that you email a copy of your draft answers
to your exam supervisor at 5.30pm**

&

**Please ensure that you upload a copy of your draft answers
to the box.com link (provided in the exam scenario email sent 29th August) at 5.30pm**



RIBA PART 3
EXAMINATION IN PROFESSIONAL PRACTICE

**Autumn 2018
Practice Problems**

Day 2

Questions 6-10

QUESTION 6

Page 1 of 1

Email@ndgarchitects.com

Date: 20 August 2018

To: Candidate@ndgarchitects.com

From: Belinda Carter

Re: **Madchester Towers**

After all the euphoria of getting approval for the office building in Madchester things seem to have gone a bit quiet. Just last week I discovered that Jeff Tracy of IR Developments, has sold the site with the benefit of planning approval (for twice the price he paid for it!), to another developer Toby Hood of Quick and Easy Developments.

I contacted Mr Hood today and he made it clear to me that they would be using their own architects to take the scheme forward. I subsequently spoke to Jeff Tracy who explained that his own backers had pulled out and he had no option but to sell the site rather than develop it himself. In readiness for our directors meeting tomorrow could you please prepare a memo setting out the following:

1. The basis of the original agreement (We used the headings **you** previously prepared in **your confidential memo to me (exam day one - question four)** about our key terms and conditions in the agreement with Mr Tracy). Did you draw attention specifically to copyright?
2. What action we should take, given the situation we find ourselves in?
3. What we might learn from this situation, what the Practice should, ideally, have included in our original appointment letter, and therefore what we would do next time?
4. Are there any professional issues for the Mr Hood's architects "Snapitup"

Finally draft two short letters, one to our Client Mr Tracy and one to the new owner of the site, Mr Hood diplomatically setting out our position and requesting a meeting. (We would, of course, meet with each of them individually, not together!)

Many thanks

Belinda, Director

NDG Architects

QUESTION 7
Page 1 of 3

Email@ndgarchitects.com

Date: 17 August 2018

To: Candidate@ndgarchitects.com

From: Belinda Carter

Re: **Private House at 10 Pine Court Road, Madchester**

Good morning!

Michael tells me that you may have time to deal with the attached.

Can you please draft an email response to the Solicitor with a copy to Jim Raffe. I shall be back about 5.00p.m. If you have any concerns make some notes that we can talk about and I'll have a look at your email before it's sent.

You should be able to get the information about the original project from the files as it is relatively recent. The project architect who designed the house left us about 2 years ago, but I recall that, whilst we prepared the drawings and obtained the consents, the only site visit made was to sort out a revision to the stud partitioning in the bathroom to accommodate a shower. I don't think we charged for that, as we were hoping for some more work from Jim - which never materialised. We obviously will have no record about the recent loft conversion.

Thanks and regards

Belinda

Belinda Carter, Director
NDG Architects

QUESTION 7

Page 2 of 3

Email@raffeconstruction.co.uk

Date: 17 August 2018

To: Belinda Carter@ndgarchitects.com

From: Jim Raffe

Re: Private House at 10 Pine Court Road, Madchester

Hi Belinda

I hope you are well and the practice is busy. You may recall that about four years ago NDG Architects obtained planning permission and building regulations approval for me to build my own house at the above address. You also did the working/technical drawings for me to build to and use for submission to the Council.

I paid you a lump sum for these works. You said at the time that if I needed any more services to contact you. Well I am now selling my house, having saved the capital gains tax. I converted the loft space last year into a study based on one of the options you proposed but at the time of construction was not affordable. We had included the rooflights in the original design to give some natural light and ventilation in the loft space so there have been no external alterations. The conversion works proved a bit more challenging as we had no construction drawings but we did manage to get everything to work pretty much as you had suggested.

I've had an email from the solicitors of the purchaser. Can you please let them have the information they want and let me know what I owe you.

Thanks and warmest regards

Jim

Jim Raffe

Raffe Construction Limited

QUESTION 7

Page 3 of 3

Email@lsrsolicitors.co.uk

Date: 14 August 2018

To: Jim Raffe@raffeconstruction.co.uk

From: Lionel Serving

Re: Private House at 10 Pine Court Road, Madchester

Dear Mr Raffe,

Before we can finalise the arrangement on behalf of our Client for the purchase of the above property, we would seek your assurance that:

1. Planning Permission was obtained for the works.
Please forward a copy of the planning permission, plus the respective drawings.
2. Building Regulations approval was obtained and that the building was properly constructed, in accordance with that approval.
Please forward copies of the approved drawings and the consent notice.

We understand from the Estate Agency dealing with the sale on your behalf, that the house was 'architect designed'. We will require a certificate from the architect that the building works were carried out in accordance with the Building Regulations.

Perhaps you could advise the name and address of the architect concerned or, alternatively, arrange for the architect to supply us with this information. Please do not hesitate to contact me if there are any points which need clarification or further discussion.

Regards

Lionel

Lionel Serving

Partner

LSR Solicitors

QUESTION 8
Page 1 of 1

Email@ndgarchitects.com

Date: 29 August 2018

To: Candidate@ndgarchitects.com

From: Michael Hart

Re: **Alterations to 1 Wayward Place, Ormkirk**

Good morning,

Belinda has brought me up to speed with the issues regarding the addition of the stainless steel flue at 10 Wayward Place. I have also had a call from Ava Grudge whom I have known for many years as a fellow member (now secretary) of the Ormkirk Civic Society. She is not happy and is threatening talking to the enforcement team at the Planning Office unless the flue is removed.

I have arranged to meet her at 1500hrs on Monday 10 September 2018 to discuss the salient matters so I want to be well prepared but I will have little time in the office before the meeting due to ongoing commitments. We have an obligation to our client to address and resolve the issues ideally to achieve exactly what they want. It would be really helpful you could prepare some brief notes for me by Monday morning in regard:

- a. National and local policies that affect such matters in Conservation Areas – where would these policies be set out? Could there be a document that relates specifically to the Ormkirk Conservation Area?
- b. I initially thought that this might be classed as Permitted Development. Are there likely to be local restrictions imposed on permitted development that apply to 1 Wayward Place?
- c. What enforcement action could be taken and what are the procedures?
- d. What would we need to do to allow the flue to be retained as obviously the client has purchased the appliance and was very pleased with the location and appearance in the main living room?
- e. Can you think of any other options/actions that we could take?

Thanks

Michael Hart, Director

NDG Architects

QUESTION 9
Page 1 of 1

Email@ndgarchitects.com

Date: 29 August 2018

To: Candidate@ndgarchitects.com

From: Michael Hart

Re: STRICTLY PRIVATE AND CONFIDENTIAL

As you know I am away on holiday at the moment but I have just received a very disturbing phone call from another member of staff which I will briefly outline below. However, I want to ensure that as the staff representative on our policy group you can make sure that you are able to attend a meeting next Monday at 0900hrs.

It seems that a member of staff was having problems with their office laptop and asked Dareem for help, as you know he is something of an expert in these matters. Whilst endeavouring to fix the problem he noticed a file titled *Studio100 Architects* and being somewhat intrigued, as they are our main competitor, had a look. What he found was correspondence which indicated that this member of staff was intending to move to *Studio 100 Architects* in a senior position taking with them two of our long standing clients.

This must be kept strictly confidential and I have purposely withheld the name of the person at this stage. In advance of the meeting could you please:

- a. Set out the issues that arise from this situation.
- b. Determine the process that we need to apply.
- c. Draft an appropriate letter to the individual that we can review at the meeting.

I appreciate that this is a matter that ultimately will have to be dealt with by the directors but you are probably more up to date with Employment Law after your recent Part 3 lectures.

Thanks and best regards

Michael Hart, Director
NDG Architects

QUESTION 10
Page 1 of 2

Email@ndgarchitects.com

Date: 30 August 2018

To: Candidate@ndgarchitects.com

From: Michael Hart

Re: New Building for Madchester Art College

As you are aware the contractor has been consistently slipping on programme over the last four months and is now advising that the full completion of the building will not be achieved until 21 December 2018 which is sixteen weeks after the contract completion date. Whilst the discussions continue in regard to justification for the Extension of Time claims, we are faced with the reality that the new building will not be available for the start of the first academic term. The outstanding major works relate to the central atrium space and the adjoining escape staircase which will provide a secondary means of escape in the event the primary staircase is not available. The steel staircase and lift issues have now been resolved so we have confidence that the projected completion date is achievable.

The client is adamant that due to the committed student intake and the accommodation needed to deliver the curriculum, the principal teaching, lecture theatre and studio spaces and the associated supporting accommodation is to be handed-over for use on a floor by floor basis, two floors each month starting on 01 October 2018 with basement/ground floors, 05 November 2018 for first/second floors, 03 December 2018 for third/fourth floors and 04 January 2019 for the atrium/escape staircase to achieve full completion prior to the start of the second term on 07 January 2019. You will see a bit of contingency has been built in from the date provided by the Principal Contractor! The college thinks that whilst not ideal the programme can be re-arranged to suit.

The M&E Engineers have advised that the service installations have been zoned on a floor-by-floor basis so services can be made available as required.

Obviously there is no arrangement for phased handover in the contract but the strategy suggested by the college makes good sense as the all the teaching and support spaces are already nearing completion.

The Principal Contractor is eager to consider the option.

QUESTION 10

Page 2 of 2

Can you please email me with your thoughts about the following:

- a. How can this be formalised?
- b. What will be the procedure at each handover?
- c. Does this mean we will have lots of different Practical Completion Certificates and Rectification Periods?
- d. Who else outside of the Project Team will need to be consulted or involved?
- e. Is there anything else that needs consideration?

Thanks and best regards

Sue Allen, Associate Director

NDG Architects

END OF DAY TWO

Please ensure that you email a copy of your draft answers to your exam supervisor at 5.30pm

&

Please ensure that you upload a copy of your draft answers to the box.com link (provided in the exam scenario email sent 29th August) at 5.30pm

DAY THREE

CHECK LIST – DO NOT FORGET TO SEND

DUPLICATE COPIES OF

**C.V.
SELFEVALUATION
PEDR SHEETS
CASE STUDY
AND RESPONSES TO PRACTICE PROBLEMS**

TOGETHER WITH

DECLARATION – signed by yourself and the Exam Supervisor

REMEMBER to obtain a Certificate of Posting and keep in a safe place to present at interview.

&

Please ensure that you also upload a copy of your final submission to the box.com link (provided in the exam scenario email sent 29 August) before 5.30pm